



United States
Attorney's Office
Western District of Texas



Doctor Agrees to Pay \$468,000 to Settle Civil False Claims Act Allegations

Monday, March 10, 2025

For Immediate Release

U.S. Attorney's Office, Western District of Texas

EL PASO, Texas – John Patterson, M.D., a physician practicing in El Paso has agreed to pay the United States \$468,626 to resolve allegations under the Federal False Claims Act.

The United States alleged that Dr. Patterson received kickbacks from Nursemind Home Care Inc., a freestanding hospice care center in El Paso, to certify patients as eligible for hospice services when in fact the patients were not eligible for these services. The United States further alleged that by falsely certifying these patients as eligible for hospices services, Dr. Patterson caused false claims to be submitted to federal healthcare programs.

"My office will hold providers accountable, both through the civil and criminal process, when they attempt to defraud federal healthcare programs and the American taxpayer," said Acting U.S. Attorney Margaret Leachman for the Western District of Texas.

Dr. Patterson received cooperation credit under the terms of the settlement pursuant to the Justice Department's Guidelines for Taking Voluntary Disclosure, Cooperation, and Remediation into Account in False Claims Act Matters. Dr. Patterson cooperated with the United States' investigation by, among other things, agreeing to cooperate with an ongoing criminal investigation and to testify truthfully in any resulting criminal prosecutions.

The investigation into this scheme led to the criminal prosecution of Zenia Chavez, the owner of Nursemind Home Care, Inc. Chavez pleaded guilty to one count of conspiracy to commit illegal remunerations regarding a federal health care program, in violation of 18 U.S.C. § 371.

"Violations of the Anti-Kickback Statute waste valuable federal health care program funds and corrupt the medical decision-making process," said Special Agent in Charge Jason E. Meadows of the U.S. Department of Health and Human Services Office of Inspector General (HHS-OIG). "The emotional toll it takes on Medicare recipients and their families to be placed on hospice when it is not appropriate is

reprehensible. HHS-OIG will continue to identify and investigate those who seek to unlawfully benefit from such abhorrent financial arrangements."

"Dr. Patterson falsely certified individuals for hospice services under Medicare when they did not meet eligibility criteria," said Special Agent in Charge John Morales for FBI El Paso. "He violated his oath as a physician to fight against healthcare fraud and waste. Today's civil settlement shows how steadfastly committed the FBI El Paso Healthcare Fraud and Financial Crimes Task Force is in protecting the integrity of the Medicare Program, which is vital to the health and well-being of individuals in need of their services. We will go after individuals who seek to enrich themselves by jeopardizing the healthcare of Medicare beneficiaries and defrauding American taxpayers."

Assistant U.S. Attorney Eduardo Castillo negotiated the civil settlement on behalf of the United States.

Assistant U.S. Attorneys Chris Skillern and Debra Kanof represented the United States in the criminal prosecution of Ms. Zenia Chavez.

The claims resolved by the settlement are allegations only and there has been no determination of liability.

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Contact

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FALSE CLAIMS ACT

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